

Nonsuch Estate planning application PL/2026/05223 and PL/2026/04847

11 Sep 2026

Application: Restoration and change of use of Nonsuch House (Grade II* listed) and estate buildings to a 50-bedroom boutique hotel, with a new Welcome Building (spa, leisure, food and beverage, flexible event space), new-build leisure structures, staff accommodation (a live-in flat in a new Gatehouse and a separate Estate Manager's dwelling), new forestry/agricultural buildings (tractor store, workshop, estates office), a new vehicular junction onto the A3102, 91 car parking spaces,¹ an acoustic bund, and the demolition of Denbanks and its replacement with two dwellings. Site area 13.76 hectares.²

How planning application decisions are made

Planning decisions in England are made "in accordance with the development plan unless material considerations indicate otherwise" according to section 38(6) in the Planning and Compulsory Purchase Act 2004.

The relevant development plans here are the **Wiltshire Core Strategy (WCS, adopted January 2015)**,³ the **saved policies of the former Kennet Local Plan**, and the **National Planning Policy Framework (NPPF, 2026)**.⁴

So objections that carry weight are the ones tied to a specific policy, and backed by evidence. Grounds for objection that will be dismissed by the planning officers as non-material include:

- Reduction or loss of individual property value
- Boundary disputes or private covenants
- Temporary noise, disruption, or dust during the construction phase
- Commercial competition with another local business
- The applicant's personal character, history, or motives

¹ Transport Statement §4.18, p. 18.

² Application Form (redacted): 50 hotel bedrooms (Use Class C1); 2 existing / 22 proposed FTE employees; site area 13.76 ha; "development already started without consent" = Yes; rights-of-way diversions required = No; parking increase from 10 to 75 spaces; pre-application ref ENQ/2024/01788.

³ Wiltshire Core Strategy - [online PDF link](#).

⁴ National Planning Policy Framework - [online PDF link](#).

The key issue: the low-key alternative the Council asked for has not been tested

Summary: The applicant wants to turn Nonsuch House - a rare, nationally important listed building badly damaged by the 2022 fire - and its whole estate into a 50-bedroom hotel with a spa, restaurant and bar, staff housing, new estate buildings and a car park, reached by a new junction off the A3102 (Westbrook Road). Restoring the house is a good thing. The problem is everything built *around* it, and whether it is justified.

At the early (“pre-application”) stage the Council suggested testing a simpler use of the *existing* buildings first. The applicant has not done this: the viability report they provided only compares three versions of a full hotel and picks the biggest. This is the single biggest weakness, and the other objections flow from it.

At the pre-application stage, Wiltshire's Senior Conservation Officer told the applicant that a lower-key, flexible letting use of the existing house and buildings *“appears to have some potential to be achieved via relatively low-key changes, avoiding significant pressure on the fabric or setting of the buildings, and therefore could be acceptable in principle”*,⁵ but that the applicant had not shown this could not be achieved without all the new buildings:

“A proposed model of use for short-term letting of the house and associated buildings on a flexible basis appears to have some potential to be achieved via relatively low-key changes [...]

*However, it has not been clearly demonstrated that the proposed short-term letting use model cannot be achieved without need for some or all of the additional new development associated with the more sophisticated hotel use. [...] the policies in the Core Strategy that have been quoted as being supportive of the proposed development also focus primarily on re-using and developing existing buildings where the development will be in open countryside as this site is. Without clear justification for the quantum of development that is proposed there will presumably also be a policy objection to the new development within this open countryside location. At present that justification has not been demonstrated and there is no clear heritage benefit which might justify setting aside usual policy.”*⁶

The pre-application Case Officer reinforced this: the *“main consideration will be the justification for the works required to conserve the heritage assets and whether the proposed change of use would secure the ‘optimum viable use’ [and] robust evidence must therefore be submitted to justify the quantum of the development [...]”*⁷

The applicant’s answer is their **Market and Viability Assessment** (MVA). By its own account it *“tests three development scenarios”*:⁸

- (A) the proposed 50-bedroom hotel with the new Welcome Building

⁵ Planning Statement §3.4, p. 10.

⁶ Planning Statement §3.4, p. 10.

⁷ Planning Statement §3.5–3.6, pp. 10–11.

⁸ Market and Viability Assessment, Executive Summary.

- (B) a 30-key “*reduced scheme using existing buildings only*”
- (C) a 35-key “*intensified scheme*”.

Scenario	Rooms in Nonsuch House + East Wing	Rooms in estate buildings	Total rooms
A	18	32	50
B	2	28	30
C	7	28	35

The MVA concludes that scenario (A), which is the largest, is the answer.⁹ In other words, it compares three versions of a commercial hotel and selects the biggest, rather than demonstrating that a more modest, buildings-led use the Council raised could not work.

However:

- **The three scenarios are set up so that no genuinely lower-harm option can win.** The reduced scheme B relying solely on existing buildings is declared “*structurally incapable of generating sufficient and sustainable income*” - with lower room rates (£225 against £250), lower occupancy and lower ancillary income built in (in part *because* they contain fewer of the very facilities whose necessity is in question), and a capital recovery of ~36 years against Scenario A's ~10.5 - while the more intensive scheme C is rejected *not* on viability but on heritage: the report accepts it “improves financial performance” but does so “at the cost of materially greater harm to the significance of the listed building.” So one alternative is made to fail on money and the other is set aside on heritage, and the only option left standing is the largest scheme. An appraisal whose assumptions guarantee its own conclusion is not the “*clear and convincing justification*” the NPPF requires¹⁰. Crucially, the genuinely lower-harm option (the flexible short-term letting of the house that the Conservation Officer said “could be acceptable in principle”) is never given a viability appraisal at all. An assessment that never tests a lower-harm *viable* use cannot establish the “optimum viable use”.
- **Every alternative is rejected by assertion, not costing.** The Assessment of Future Use Options dismisses nine alternative uses: private residence, housing, offices, education, agriculture/livery, a care home, a wedding/events venue, a shopping village and a members’ club - each by narrative assertion rather than quantified evidence, with no site-specific costed appraisal.
- **The “enabling” building is larger than the asset it is meant to serve.** The Welcome Building has a gross internal area of 1,480 sqm, which is larger than Nonsuch House and its East Wing

⁹ Planning Statement §6.23, p. 27.

¹⁰ NPPF 2026, Chapter 20, HE4 (2), p. 94.

combined (~1,300 sqm).¹¹ A new-build bigger than the Grade II* house is hard to reconcile with Historic England's requirement that enabling development be the *minimum* necessary.

- **“Least harmful of three hotels” is not the test.** The report concludes Scenario A is “*the least harmful of the realistic options available*”¹² - but it defined those options as three versions of the same hotel. Optimum viable use asks whether a genuinely lower-harm *viable* use could secure the building's future; the report never answers that question.

This last point matters because of what “optimum viable use” actually means.

The Government's Planning Practice Guidance defines the test in two steps. First, identify which uses are *economically viable* (there can be more than one). Second, of those viable uses, the optimum viable use is the one that causes the least harm to the heritage asset:

*“If there is only one viable use, that use is the optimum viable use. If there is a range of alternative economically viable uses, the optimum viable use is the one likely to cause the least harm to the significance of the asset not just through necessary initial changes, but also as a result of subsequent wear and tear and likely future changes. The optimum viable use may not necessarily be the most economically viable one.”*¹³

So it is not a “most money wins” test. A developer cannot justify greater harm simply because a bigger scheme is more profitable. Nor is it enough to compare several versions of the *same* commercial use and pick the largest, which is what the applicant's MVA does with its three hotel scenarios. The proper question is whether a *genuinely lower-harm* use - such as a lower-key, flexible use of the house without all the new buildings - could also secure the building's future. If it could, that is the optimum viable use, and the extra buildings are not justified. The applicant has not shown that it could not. If the enabling development is not justified, none of the harm it causes re. landscape, noise, lighting, traffic, and ecology is outweighed, and the scheme should be refused. We should ask the Council to commission an independent review of the viability appraisal, its cost and revenue assumptions made available to residents (redacted only where genuinely commercially confidential).

Also, NPPF 2026 Chapter 20 says that where a scheme causes harm to a designated heritage asset (which the applicant concedes it does), that harm must be weighed against the public benefits.¹⁴ The applicant's whole case for allowing the harm rests on the following public benefits: securing a viable and sustainable use for a listed building of considerable scale and complexity; repair and restoration of the listed building; sustainable tourism and economic activity within the rural area; and employment opportunities.

Many of these are weaker than claimed:

1. As above, this huge overdevelopment has not been demonstrated to be the optimum viable use.

¹¹ Market and Viability Assessment §6.2.

¹² Market and Viability Assessment §8.3.

¹³ Planning Practice Guidance: Historic environment, §15. [Online link](#).

¹⁴ NPPF 2026, Chapter 20, HE6 (4), p. 96.

2. Similarly, it has not been shown that repair and restoration of the estate could not be achieved with a lower-key scheme.
3. A luxury hotel, spa and golf resort already exists a few miles away at Bowood, near Calne. The application does not demonstrate any unmet demand this scheme would fill: the Case Officer's pre-application view that there is a "broad need for this type of hotel development" is an opinion, not evidence, and the Carter Jonas Marketing Report addressed only the difficulty of selling the estate as a private residence - it did not test hotel demand. Residents made exactly this point in the Wyatts Lake Farm case on the same road: "Not clear there is an unmet demand (we already have Bowood) [...] why increase traffic flow when 'demand' has not been satisfactorily established[?]."¹⁵
4. The scheme is deliberately designed as a self-contained destination - its own restaurant, bar, spa and flexible event space, plus a programme of on-site "year-round activity and events", with guests shuttled around the estate by electric buggy. Guests have little reason to leave the complex, so the claimed benefit to Bromham's pubs, shops and services is speculative. In the Wyatts Lake Farm case¹⁶ the Bromham Parish Council concluded that such a site "would have no beneficial advantages to the Parish. It is outside the village's main community, therefore tourism/workers would not use the village amenities/retail especially if a shop and tea room are on site." That applies with even greater force here, given the far larger on-site offer.
5. The scheme proposes 22 full-time-equivalent jobs (up from 2), but gives no visitor numbers or economic output that could actually be weighed. There is no mechanism to secure the jobs for local people - the Case Officer could only say they were "hopefully able to be secured within the local population". In the comparable Harrow Farm case the officer found the economic benefit "unclear", warned it could "simply result in redistribution [...] away from centres of population", and concluded there was "insufficient evidence to demonstrate any significant local economic benefits". The same limited weight applies here. And because the site has no public transport, staff - like guests - would commute by car, so the "employment benefit" also adds to the unsustainable-travel harm.¹⁷

Set against those thin benefits, the concrete effect on Bromham is increased traffic. Every guest, day visitor, member of staff, supplier and event attendee arrives by car via the new A3102 junction. That is a dis-benefit, not a benefit, and it compounds the transport objections.

¹⁵ Planning Statement §3.5–3.6, pp. 10–11 (Case Officer pre-application view); Wyatts Lake Farm, Bromham (19/03162/FUL), residents' comments.

¹⁶ Wyatts Lake Farm, Westbrook Road, Bromham (19/03162/FUL).

¹⁷ Case Officer pre-application response (Planning Statement §3.5–3.6, pp. 10–11); Application Form (2 existing / 22 proposed FTE employees); Harrow Farm, Froxfield (PL/2021/05887).

Part 1: Principle of development

Wiltshire Core Strategy Core Policies 1 & 2 (Settlement and Delivery Strategy) and Core Policy 12 (Devizes Community Area)

Summary: The countryside is protected from new development unless a scheme fits a short list of exceptions. A big new hotel complex only qualifies if those exceptions are genuinely met - and here they aren't, because the justification for it is missing.

What the policies require: CP1 and CP2 direct development to within the defined "Limits of Development" of Principal Settlements, Market Towns, Local Service Centres and Large Villages. Outside those limits, in the open countryside, development "will not be permitted" other than in the exceptional circumstances set out in the named "exception policies".¹⁸ These exception policies are: development related to tourism (Core Policies 39 and 40), and supporting rural life (Core Policy 48). The Nonsuch site is at Westbrook, in the open countryside, within the Devizes Community Area (Core Policy 12).

How this scheme breaches them: The estate is outside any settlement boundary. The applicant does rely on exception policies, however - principally CP40 "Development related to tourism",¹⁹ CP48 "Supporting rural life",²⁰ and CP58 "Conservation of the Historic Environment".²¹ But those exceptions only apply if their own criteria are met - and the criteria turn on the viability and heritage justification that, as the keystone issue above shows, has not been made out.

In the Wyatts Lake Farm holiday and rural worker application on the same Westbrook Road, the Case Officer found the site *"located outside the Limits of Development designated by Core Strategy Core Policies 1, 2 & 12, which dictate against new residential development unless specifically supported by other policies of the strategy."*²² Where the exception falls away, the in-principle objection stands.

Wiltshire Core Strategy: Core Policy 38 (Retail and leisure)

Summary: The hotel isn't just bedrooms - it has a restaurant, bar, event space and a spa/gym open to day visitors and local people. Putting leisure uses like these in the open countryside, away from any town, requires a special test to prove they won't damage the town centres. That test hasn't been done at all.

What the policy requires: CP38 seeks to protect the vitality and viability of Wiltshire's town centres. It requires that *"all proposals for retail or leisure uses on sites not within a town centre in excess of 200 sqm gross floorspace [...] must be accompanied by an impact assessment which [...] demonstrates that the*

¹⁸ Wiltshire Core Strategy §4.25, p. 47.

¹⁹ Planning statement §6.4, p. 20.

²⁰ Planning statement §6.10, p. 22.

²¹ Planning statement §6.4, p. 20.

²² Wyatts Lake Farm, Westbrook Road, Bromham (19/03162/FUL).

proposal will not harm the vitality or viability of any nearby centres,” and that all such proposals “comply with the sequential approach [...] to ensure that development is on the most central site available.”²³

How this scheme breaches it: The scheme is not a simple hotel. It includes substantial leisure floorspace on an out-of-centre countryside site - a café/restaurant and bar, a flexible event space, tennis and padel courts, an art studio, camera obscura, and a wet spa and wellbeing suite (which includes indoor pool, sauna, steam room, gym, yoga studio and treatment rooms). And the Design and Access Statement confirms the Welcome Building is designed for “overnight guests, day visitors, staff and local users of the wellbeing facilities”,²⁴ so these are public leisure uses, not private hotel amenities for resident guests.

The floorspace plainly exceeds the 200 sqm gross threshold (the Welcome Building alone is 1,480 sqm).²⁵ Yet the application contains no retail/leisure impact assessment and no sequential test as CP38 requires. The leisure and retail elements are therefore unassessed and unjustified, targeting day visitors and local users several miles from any town - which carries a risk of drawing spend away from the Devizes and Calne centres, contrary to CP38 (and to CP40 criterion (iv)). The applicant itself lists CP38 as a relevant policy, but has not complied with its requirements.²⁶

Wiltshire Core Strategy Core Policy 39 (Tourist Development)

Summary: A second tourism policy sits alongside CP40, and this scheme fails it too. Outside the towns it wants tourist facilities in or close to a village and, where practicable, in existing or replacement buildings; and it supports development away from the villages only "in exceptional cases" where all five listed criteria are met. This scheme is new-build-led in open countryside and fails those criteria - most obviously the requirement that no suitable existing buildings are available for reuse, when the estate is full of them.

What the policy requires: Outside Principal Settlements and Market Towns, “tourist and visitor facilities should be located in or close to Local Service Centres or Large and Small Villages and, where practicable, be located in existing or replacement buildings”, and any new buildings “should be directed towards” the villages. Away from those settlements CP39 supports development only “in exceptional cases” where all five criteria are met - including (ii) "no suitable alternative existing buildings or sites exist which are available for reuse", and (iii) that it “would not detract from the character or appearance of the landscape or settlement and would not be detrimental to the amenities of residential areas”.²⁷

How this scheme breaches it: The scheme is new-build-led in open countryside, not reuse directed to a village. Whether or not the site counts as “close to” Bromham (can be debated), criterion (ii) fails outright - the estate is full of existing buildings available for reuse. Criterion (iii) fails too: the applicant’s own Historical Assessment concedes a “suburbanising” risk, and noise and lighting on the

²³ Wiltshire Core Strategy, p.229.

²⁴ Design and Access Statement §10.1, p. 41.

²⁵ Market and Viability Assessment §6.2

²⁶ Planning Statement §5.3, p. 18.

²⁷ Wiltshire Core Strategy, Core Policy 39 (p. 231).

neighbouring dwellings are unassessed. And the applicant cannot claim the site is close enough to Bromham to satisfy CP39 while arguing it is too far from homes ("over 400m") to affect amenity.²⁸

Wiltshire Core Strategy: Core Policy 40 (Hotels, bed and breakfasts, guest houses and conference facilities)

Summary: This is the main policy the applicant uses to argue a hotel is allowed here at all. But outside towns and villages it only supports hotel development that saves historic buildings - not a sprawl of new spa, event and leisure buildings - and it requires proof that the scheme won't harm the town centre or generate unacceptable traffic. That proof is missing.

What the policy requires: CP40 supports new hotels and conference facilities within the defined settlements. Outside those settlements - like Nonsuch - it supports proposals only where they "*involve the conservation of buildings that for contextual, architectural or historic reasons should be retained and otherwise would not be.*" And the applicant must also demonstrate that the proposal will "*(iv) not have a detrimental impact on the vitality of the town centre*" and "*(v) avoid unacceptable traffic generation.*"²⁹

How this scheme breaches it: CP40 is the exception policy on which the applicant mainly relies. But its out-of-settlement limb supports only what is needed to conserve the buildings that would otherwise be lost. Even accepting that this justifies repairing and re-using the fire-damaged Nonsuch House and its associated listed buildings, it does not support the extensive new-build development wrapped around them - the Welcome Building, wet spa and wellbeing wing, gatehouse, boat house, yoga studio, padel courts, tractor store, workshop and estates office. Those are not "*conservation of buildings that should be retained*"; they are the enabling development whose necessity has never been demonstrated (see the keystone issue). The policy's own tests are also failed: criterion (iv) - its public-facing food, beverage, event and spa offer (open to day visitors and local users) draws trade away from the Devizes and Calne town centres rather than supporting them (see Core Policy 38, previous); and criterion (v) - the scheme is an isolated, entirely car-dependent site with a new A3102 junction and 91 parking spaces, generating the traffic CP40 says must be avoided.³⁰

The applicant also leans on a pre-application remark by the Council's Economic Development Team that there is a deficit in high-quality hotel accommodation in Wiltshire,³¹ however CP40 notes that this need is particularly located in the south of Wiltshire.³² The applicant has not demonstrated an unmet need in this specific site, considering comparable accommodation already operates nearby at Bowood

²⁸ Historical Assessment §8.7.2 ("suburbanising"); Planning Statement §6.38, p. 33 ("over 400m").

²⁹ Wiltshire Core Strategy, p. 232.

³⁰ Wiltshire Core Strategy, Core Policy 40; buildings listed on the Proposed Site Layout.

³¹ Planning Statement §6.7, p. 21.

³² Wiltshire Core Strategy: Core Policy 40 6.31, p. 231.

Wiltshire Core Strategy Core Policy 48 (Supporting Rural Life) and saved Kennet Local Plan Policy HC25: new dwellings and staff accommodation in the countryside

Summary: The scheme puts several new homes into the open countryside: two houses where Denbanks is one, a live-in staff flat in the new Gatehouse, and an Estate Manager's house. Countryside housing is only allowed in narrow cases, and needs compelling evidence that living on site is essential. That evidence isn't provided.

What the policies require: CP48 supports dwellings for rural/estate workers only where justified by functional and financial evidence of essential need.³³ Saved Kennet Local Plan Policy HC25 (Replacement of existing dwellings) allows a countryside dwelling to be replaced subject to criteria (including that the replacement is not materially larger than, and broadly on the footprint of, the existing house). And NPPF 2026 policy S5(1)(c) permits replacement only *"for the same use and not disproportionately larger"*,³⁴ while NPPF policy HO11 resists isolated homes unless the rural-worker exception demonstrates necessity to live at the workplace.³⁵

How this scheme breaches them: The scheme introduces several new residential units in the countryside: the Estate Manager's Accommodation; a live-in staff flat within the new Gatehouse (which the applicant describes as *"accommodation for security staff and staff working antisocial hours"*); and two dwellings replacing the single existing Denbanks (each ~239 m² over three floors).³⁶

Replacing one dwelling with two is neither the same quantum of use nor a proportionate replacement, so it falls outside HC25 and S5(1)(c). CP48/HO11 require functional and financial evidence of essential need, and none is provided - the applicant asserts staff accommodation is *"essential"* (without justifying why) and *"not uncommon"*,³⁷ which is not evidence. And the justification for the second Denbanks dwelling openly shifts, within the same document, from essential rural-staff accommodation to a general market dwelling that will *"contribute towards the Council's housing need."*³⁸ So there is no one consistent reason given.

Wiltshire refused Hampton Farm for want of functional/financial evidence (*"security alone does not equate to an essential need"*),³⁹ Clarendon Park,⁴⁰ and Wyatt's Lake⁴¹ likewise and Braydon Pond Lodge where a replacement dwelling *"significantly different in scale and design"* read as a new dwelling in open countryside.⁴² The applicant's own Assessment of Future Use Options similarly accepts that housing development *"would detract from the character and setting of Nonsuch House, compromising its heritage value"*.

³³ Wiltshire Core Strategy, p. 256.

³⁴ NPPF 2026, Chapter 4, S5(1)(c), p. 25.

³⁵ NPPF 2026, Chapter 6, HO11(1)(a), p. 37.

³⁶ Design and Access Statement §17 (pp. 59–61); Planning Statement §6.9–6.11, pp. 21–22.

³⁷ Planning Statement §6.11, p. 22.

³⁸ Planning Statement §6.11, p. 22.

³⁹ Hampton Farm, PL/2025/08401

⁴⁰ Clarendon Park, PL/2023/10771

⁴¹ Wyatts Lake Farm, Westbrook Road, Bromham (19/03162/FUL).

⁴² Braydon Pond Lodge (PL/2022/02697)

NPPF 2026 policies S3–S6: the lack of local plan argument, and why it fails

Summary: The applicant argues that Wiltshire’s housing shortage and out-of-date plan mean the rules should tilt in their favour. But that argument is for housing schemes, not a hotel - and in any case the law switches it off where a listed building would be harmed.

What the applicant argues: The Planning Statement devotes a whole section⁴³ to arguing that the WCS’s Spatial Strategy is “*now out of date*”, that the Council has only “*2.42 years*” of housing land supply, and that - following the withdrawal of the emerging Local Plan - “*limited weight should be attributed to any perceived conflict with the Spatial Strategy*”.⁴⁴ In effect it invokes the NPPF policies S3-S6 concept of “tilted balance”, which tilts decisions towards approval where the most important policies are out of date.

Why it fails:

- **It is a housing argument applied to a hotel.** A five-year housing-land-supply shortfall renders *housing-supply* policies out of date; it does not tilt the balance in favour of a commercial hotel. The applicant effectively concedes this in their Planning Statement, accepting the point “*is an important material planning consideration for any scheme that involves new residential development*”.⁴⁵ The only residential elements here are the Denbanks dwellings and the staff accommodation; the hotel is not housing. And these are only proposed as “enabling development” for the hotel itself.
- **The tilted balance is disappplied by the listed building in any event.** The presumption is disapplied where designated-heritage-asset protection gives a clear reason for refusing; Nonsuch House is Grade II*. Wiltshire applied exactly this in the Lea refusal (the tilted balance “is not engaged”; heritage harm “far outweighs the public benefits”).⁴⁶
- **The Wiltshire Council says the WCS still applies.** Although the emerging Wiltshire Local Plan Review was withdrawn from examination by full council on 19 May 2026, the council has stated that the Wiltshire Core Strategy (2015) remains the adopted development plan and its policies are “not automatically out of date”.⁴⁷

⁴³ Planning Statement, §7, “Status of the Local Plan & the Tilted Balance”

⁴⁴ Planning Statement §7.1–7.3, p. 40 — “Status of the Local Plan & the Tilted Balance”; “2.42 years” housing land supply; “limited weight” to the Spatial Strategy; concedes relevance to “new residential development”.

⁴⁵ Planning Statement §7.3

⁴⁶ PL/2025/07909

⁴⁷ <https://www.wiltshire.gov.uk/planning-policy>

Part 2: Heritage

Wiltshire Core Strategy Core Policy 58 (Historic Environment), Core Policy 57 (Design) and NPPF 2026 Chapter 20; s66(1) Planning (Listed Buildings and Conservation Areas) Act 1990

Summary: You can't damage the setting of a top-grade listed building unless it's genuinely necessary. The applicant's own heritage report admits the harm, then labels it "low" by only assessing each new building on its own, ignoring the cumulative loss of the estate's openness that the same report says is central to its significance.

What the policies require: CP58 requires proposals to protect, conserve and where possible enhance the historic environment; harm must be justified and weighed, and the manner of conservation must be commensurate with the asset's significance. Nonsuch House is Grade II* in the top 8% of listed buildings nationally - set within designed formal gardens, with a group of associated (curtilage) listed buildings.

CP57 requires high-quality design that protects historic assets; NPPF 2026 Chapter 20 gives "great weight" to conservation, requires "clear and convincing justification" for harm, and weighs less-than-substantial harm against public benefits including optimum viable use; and s66(1) imposes a statutory duty of "special regard to the desirability of preserving" a listed building and its setting.⁴⁸

How this scheme breaches them: The harm here is not only to the house but to its *setting*: a sprawling development of new and enlarged buildings spread across the estate - the Welcome Building, gatehouse, boat house ("art studio"), yoga studio, padel courts, tractor store, workshop, estates office, managers' accommodation - plus a new junction, 91-space car park and associated paraphernalia. The Conservation Officer's concerns at pre-application stage include: overdevelopment, scattered new buildings, loss of rural setting.⁴⁹

The applicant's own Historical Assessment establishes that openness is integral to significance: the house is experienced within "a deliberately composed rural setting - a sequence of approach, forecourt, gardens, falling ground and woodland edge", "the absence of subdivision, garden structures or domestic accretions is integral to this effect", and the meadow chosen for the Welcome Building "currently contributes to significance through its openness".⁵⁰

The Historical Assessment also concedes the scheme's risks:

*"Intensification of use, if not carefully managed, could lead to a proliferation of car parking, circulation routes, lighting, signage and domestic or commercial paraphernalia across the estate. These elements, taken cumulatively, risk suburbanising the character of the setting [...] and could weaken the visual pre-eminence of the house."*⁵¹

⁴⁸ NPPF (2026) Chapter 20; Wiltshire Core Strategy, Core Policy 57; s66(1) Planning (Listed Buildings and Conservation Areas) Act 1990.

⁴⁹ Proposed Site Layout; Conservation Officer pre-application concerns (Planning Statement §3.4, p. 10).

⁵⁰ Historical Assessment (setting sections).

⁵¹ Historical Assessment §8.7.2.

Yet the same document then rates the overall harm as “low and firmly within the less than substantial category”, and the Welcome Building’s harm (although it is larger than Nonsuch House and its East Wing combined) as “demonstrably low” and “outweighed many times over”.⁵²

Those conclusions do not sit together: each building is assessed individually and found negligible, but nothing assesses what happens to a setting whose defining quality is openness when built form is introduced at several points at once. The Historical Assessment’s own site-selection exercise proves the point: every alternative location for the Welcome Building (within the house, an East Wing extension, the yard, south of the house, the woodland edge) was rejected for “very high sensitivity and open views”, “harm to tranquillity” or harm to historic plan form, and its concluding significance section describes the estate as highly sensitive and vulnerable, with limited capacity for further loss. An estate uniformly too sensitive to accommodate the building anywhere cannot also be one where the cumulative harm is “low”.⁵³

The true level of harm to setting is greater than “low” because what is eroded is the openness of the estate as a whole.

The Planning Statement also says the new buildings were “amended” to “respect the main Grade II* Listed Building and assimilate well within the landscape” and that the harm is outweighed by public benefits and optimum viable use. But amending the design of buildings that do not necessarily need to be there does not answer whether they are justified at all; and “outweighed” depends entirely on the viability/OVU case that has not been made out (keystone). The decision-maker must reach its own view on the degree of harm rather than adopt the applicant’s characterisation, and weigh the *actual*, evidenced public benefits - of which none are quantified.⁵⁴

The impact of the acoustic bund on setting has also not been assessed in the heritage submission at all.

Should also note that the Application Form states the “development or work has already been started without consent” (answered “Yes”). Several structures in the document schedule are flagged as apparently built without permission — the Boat House (“art studio”), the outdoor kitchen. Works to, or in the setting of, a listed building without consent are a serious matter.⁵⁵

Comparable refusals: At Berrybrook Farm the officer held that “existing building stock should be fully utilised before any new buildings are erected”; at Pool Farm, that “the same public benefit could very easily be secured through a more sensitive scheme [and] there is nothing to suggest that such a scheme would be unviable”; and at Harrow Farm, that no evidence showed it “would not be viable to convert only the historic farm building”.⁵⁶

⁵² Historical Assessment (heritage-impact conclusions).

⁵³ Historical Assessment (Welcome Building site-selection; concluding significance section).

⁵⁴ Planning Statement §6.42, p. 35.

⁵⁵ Application Form (redacted); Proposed Site Layout (structures flagged as built).

⁵⁶ Berrybrook Farm, Sedgemoor (PL/2023/07933); Pool Farm, Biddestone (PL/2021/08215); Harrow Farm, Froxfield (PL/2021/05887).

Part 3: Landscape and countryside character

Wiltshire Core Strategy Core Policy 51 (Landscape) and NPPF 2026 Chapter 19

Summary: Wiltshire’s countryside, and its peace, quiet and dark skies, are protected. The applicant’s landscape report is weak - winter-only assessment, viewpoints only from public paths not gardens - and it rates the impact on the footpath across the site as “negligible” even though it admits new buildings will be seen from it.

What the policies require: CP51 requires that landscape character throughout Wiltshire is protected, conserved and where possible enhanced; development must not have a harmful impact on landscape character, and any negative impacts must be mitigated. It applies whether or not the land carries a national designation, and it expressly protects tranquillity and the need to protect against intrusion from light pollution, noise and motion. NPPF 2026 Chapter 19 requires decisions to recognise the intrinsic character and beauty of the countryside.

How this scheme breaches them: Spreading hotel, leisure and estate buildings, a car park, a new junction and lighting across a currently open, quiet estate is an urbanising change of the kind CP51 resists. The applicant’s Landscape and Visual Impact Assessment (LVIA) dismisses this as “negligible” and “not a valued landscape”, but it is weak.⁵⁷

- It dates from March 2023 / February 2024 and was “re-submitted”, pre-dating key parts of the current scheme (including the acoustic bund).⁵⁸
- Its site photographs have been taken in January, when tourism seasonality means this is likely to be the least-busy time of year for the estate.
- The analysis “has been carried out from external spaces within the public domain and not from the private spaces” - so the impact on adjoining neighbours’ homes and gardens at Greystones and Minty’s Top was never assessed.⁵⁹
- It treats the cross-site footpath as viewpoints S1–S4 of *medium* sensitivity, records that new buildings (the Gate House, workshop and Welcome Building) will be visible from them, yet assigns each a *negligible* operational magnitude - reasoning “the value of the existing view is low” and relying on future planting rather than what will actually be seen. However it is an established principle (applied by Wiltshire at Wyatts Lake Farm) that “*landscape planting cannot be used to make otherwise unacceptable development acceptable*”, and that bunds on Wyatt’s Lake “*would appear as alien features within the rural landscape*”.⁶⁰

⁵⁷ Landscape and Visual Impact Assessment, p. 43.

⁵⁸ Landscape and Visual Impact Assessment (dated March 2023 / February 2024, re-submitted December 2025).

⁵⁹ Landscape and Visual Impact Assessment, p. 29.

⁶⁰ Landscape and Visual Impact Assessment, p. 35 and viewpoints S1–S4; Wyatts Lake Farm, Bromham (19/03162/FUL).

- Its construction-phase rating of “Moderate” on the PRoW is then reasoned away on the basis that “the site may not be accessible by the public during periods of construction” - which is not mitigation of visual impact but a proposal to close a right of way.⁶¹
- It does not grapple with the *cumulative* urbanising effect that the applicant’s Historical Assessment admits (“risk suburbanising the character of the setting”).⁶²

Part 4: Design, residential amenity, noise and lighting

Wiltshire Core Strategy Core Policy 57 (Ensuring High Quality Design and Place Shaping)

Summary: New development must be well designed and must not harm neighbours through noise, light or disturbance. But the noise and light impacts are simply not assessed at all.

What the policy requires: CP57(vii) requires development to have regard to the amenity of existing occupants, including noise, vibration and pollution (including light intrusion); the NPPF requires new development to be appropriate for its location, mitigating noise to a minimum and avoiding significant adverse effects on health and quality of life.

How this scheme breaches it: The application assesses noise impact on neighbours using straight-line distance only, with no background noise survey, or acoustic or topographic modelling:

“[...] the Greystones estate further south, over 400m away and at a lower land level. It is considered that due to [...] separation distances, there is no potential to have an unacceptable impact on the amenities of the residents of neighbouring properties. It is however understood that concerns have been raised locally by isolated celebrations at the estate [...] It is however possible to manage the potential for future noise through conditions that restrict the use of amplified music.”⁶³

Three things are wrong with this:

1. Distance alone is not an assessment - there is no background noise survey and no account of how the land falls towards Greystones (topography carries sound).
2. The applicant admits existing complaints, which is an admission that the site already generates amenity problems. If a single private event already generated complaints, a commercial hotel operating year-round - with guest turnover and spaces in continuous use - is a materially more intensive and frequent source of noise.
3. The scheme includes a purpose-built acoustic bund wall. You do not design a noise barrier for a development you genuinely believe has “no potential” to affect neighbours. Yet no evidence has been submitted that the bund would actually work, because no noise modelling has been done.⁶⁴

⁶¹ Landscape and Visual Impact Assessment, viewpoints S1–S4.

⁶² Historical Assessment §8.7.2.

⁶³ Planning Statement §6.38

⁶⁴ Planning Statement §6.38, p. 33 (“no potential”); Acoustic Bund Wall Site Plan and Section (June 2026).

The contradiction runs deeper. The applicant's own Assessment of Future Use Options rejected a dedicated wedding or events venue specifically because of noise:

*"Hosting regular large-scale events would generate significant noise and activity, potentially impacting neighbours and disrupting the tranquillity of the estate."*⁶⁵

And yet the current scheme retains *"a bar and flexible event space"* for *"private events and gatherings"*⁶⁶ and the Pre-Application Design and Access Statement talks about "Large existing trees potential for lighting for wedding dining/photography". The applicant cannot reject events on noise grounds in one document and sell them as a revenue stream in another.

Add to this the new tractor store and vehicle workshop sited near the residential boundary (noise from machinery and repairs), and the padel courts (a notoriously noisy sport), and the amenity case is clearly unresolved.

Wiltshire has refused several scheme on precisely this deficiency - no background noise survey, reliance on distance, or unassessed events noise: Euridge Manor (PL/2021/07966), the Broad Town micro-brewery (PL/2021/08484), and the Council's own insistence (Bromham Community Hub, PL/2025/08017) on a BS4142:2019 survey demonstrating a rating level 5 dB below background. That last case established that the night-time background in the centre of the village of Bromham is just 27 dB - "very low" - so new noise is intrusive; and Greystones, on the village edge, is quieter still. None of that assessment work has been done here.⁶⁷

Comparable refusal: At Euridge Manor, Colerne (PL/2021/07966) an events use was refused after the Public Protection team calculated that noise "from 150 guests attending outdoor events would be significantly above the background noise level", found that in an open valley "acoustic barriers to attenuate outdoor entertainment are unlikely to be an option". The officer noted that a "bowl-shaped topography accentuates both the volume and distance sound from the site travels" - the very point residents make about the slope from the estate down to Clacker's Brook and back up to the residential areas of Bromham. Nonsuch has the same features but, unlike Euridge, has not even attempted a noise assessment.⁶⁸

A full noise assessment covering all estate activities should be required *before* determination.

Wiltshire Core Strategy Core Policies 51 & 57 (Lighting) and NPPF 2026 Chapter 19

Summary: Potentially lots of light in a dark area, with no lighting survey - despite protected bats that need darkness, and neighbours who currently enjoy a dark rural outlook.

What the policies require: CP51 and CP57 protect against light pollution and protect tranquillity and dark skies; NPPF 2026 Chapter 19 requires impacts on biodiversity to be minimised.

⁶⁵ Assessment of Future Use Options §2.7.1 (and Historical Assessment §9A.6.9.2)

⁶⁶ Design and Access Statement, p43

⁶⁷ Bromham Community Hub (PL/2025/08017); Euridge Manor, Colerne (PL/2021/07966); Broad Town micro-brewery (PL/2021/08484).

⁶⁸ Euridge Manor, Colerne (PL/2021/07966), officer report.

How this scheme breaches them: The scheme offers only a vague promise of “low-level, shielded”⁶⁹ lighting and the LVIA decided a night-time study was unnecessary because “because lighting would be minimal and [...] designed to Dark Skies Policies.”

But the applicant’s own Bat Survey, which found a moderate assemblage of bats roosting and foraging (sufficient that a Natural England licence will be required), requires the opposite:

“A detailed lighting assessment and lighting contour plan should therefore be prepared by a suitably quiesfied lighting professional, in consultation with the project ecologist, and secured as a condition of planning permission.”⁷⁰

A promise to be dark is not the lighting assessment CP50 and Chapter 19 require. A 50-key hotel with guest movement, external circulation and car parking in use into the evening also affects neighbours’ dark rural outlook.

A lighting design plan should be required *before* determination, and it should demonstrate that the development is appropriate for its location and that impacts are reduced to a minimum.

Part 5: Ecology and biodiversity

Wiltshire Core Strategy Core Policy 50 (Biodiversity) and NPPF 2026 Chapter 19

Summary: Development must protect wildlife and deliver a genuine net gain. The Council’s own ecologist says the surveys are out of date and incomplete, so the application can’t properly be judged.

What the policies require: CP50 requires development to demonstrate no net loss of biodiversity and, for major development, a net gain; proposals must protect features of nature-conservation value and avoid and reduce disturbance of sensitive species and habitats throughout the development’s lifetime. NPPF 2026 Chapter 19 and the Environment Act 2021 require a minimum 10% Biodiversity Net Gain and refusal where significant harm cannot be avoided, mitigated or compensated.

How this scheme breaches them: The Council’s own Ecology team objects that the evidence base is out of date and incomplete:

“The submitted Preliminary Ecological Appraisal (PEA) (v.3 04/01/2024 Abricon) is technically out of date according to best practice guidelines, being more than 2 years old [...] The PEA [...] recommends additional survey effort is required in regards badger, great crested newt and reptiles and there is no evidence that this has taken place [...] The council ecology team cannot make an accurate or comprehensive appraisal of the application until all the information is provided and up to date and this appraisal cannot be conducted on piecemeal reports. Please request that the full suite of survey effort is submitted and reported on via an ecological impact assessment (EclA)... Please reconsult ecology once all the ecological information has been submitted in full.”⁷¹

⁶⁹ Historical Assessment §10.7.2

⁷⁰ Bat Survey Report (Crossman Associates, October 2025); Planning Statement §6.53, p. 38.

⁷¹ Wiltshire Council Ecology Team consultation response (Emma Glover).

That is a statutory consultee saying the application cannot lawfully be determined on the current information. The PEA itself recommended bat emergence and activity surveys, reptile surveys, great crested newt eDNA sampling, badger surveys and a Ground Level Tree Assessment. Five buildings are confirmed bat roosts, with several more having roosting potential, and an active badger sett lies within the adjacent ancient woodland. A Biodiversity Net Gain figure of around +16% is claimed, but it is built on this out-of-date baseline - and the Council ecologist's point is that an unreliable baseline makes the gain figure unreliable too.

The Planning Statement points to bat surveys, mitigation "secured via condition", and a metric showing >10% net gain. But that does not meet the ecologist's objection: the missing surveys are still missing, and a management plan cannot be conditioned into existence without first knowing, from those surveys, what is present.⁷²

And the net-gain figure is undermined by a downward reclassification of habitat in the metric: areas the original appraisal identified as "Lowland Mixed Deciduous Woodland, including areas of ancient woodland" were reclassified as "Other Woodland; Broadleaved",⁷³ which lowers the baseline value against which "gain" is measured.

Comparable refusal: At the Ashton Keynes anaerobic digester (PL/2023/03359) the ecological submission was found "*both outdated and incomplete*", having failed to identify great crested newt breeding within 500 m; and at McDonald's, Hilpertont (PL/2023/05469) permission was withheld for "*insufficient information including the absence of full and detailed bat survey information [...] and lack of a Biodiversity Net Gain Assessment.*" The position at Nonsuch - an out-of-date PEA and missing badger, great crested newt and reptile surveys - is the same, and warrants the same conclusion.⁷⁴

Part 6: Transport, sustainability and public rights of way

Wiltshire Core Strategy Core Policies 60 & 61 and NPPF 2026 policy S3 / Chapter 15

Summary: Development should cut car dependence. This does the opposite: a new junction, 91 parking spaces, and very little walking or cycling.

What the policies require: CP60 and CP61, and NPPF 2026 policy S3 (Chapter 15), require development to be located and designed to reduce the need to travel, especially by private car, and to offer a genuine choice of transport modes.

How this scheme breaches them: The estate is in open countryside with no realistic walking, cycling or public-transport access; essentially every guest, member of staff, supplier and visitor will arrive by car. The scheme creates a new priority junction onto the A3102 and provides around 91 parking spaces - a scale of parking that is itself an admission of car dependence. The "sustainable travel" measures are electric buggies to move guests *around* the estate - which does nothing to address how they get to it.⁷⁵

⁷² Planning Statement §6.52–6.54, p. 38

⁷³ BNG Assessment §1.4

⁷⁴ Ashton Keynes (PL/2023/03359); McDonald's, Hilpertont (PL/2023/05469).

⁷⁵ Transport Statement Table 4.1, p. 18, and §4.16 (electric buggies)

Table 4.1 Proposed Car Parking Provision

Type of Parking	Quantity	Proposed No. of Parking Spaces
Hotel Guest	45 beds	45
Hotel Staff	21 staff	21
Estate Managers Residents Parking	5 beds	5
Forestry/Agricultural Office/Workshop/Tractor Store Parking	7 staff	4
Hotel Day Visitors	32	16
Total		91 Spaces

The Planning Statement claims the site *“is not remote or isolated, being within walking distance of Bromham”* and has *“good access to the primary transport network”*. But “walking distance” here really means about 550 m to the village edge along Bridleway BROM1A - unlit, unsurfaced, with no footway on the A3102, and (on the applicant’s own Transport Statement) *“no specific walking or cycling infrastructure”* nearby⁷⁶ - not a route most guests, staff or day visitors are likely to use instead of the car, particularly in bad weather. Being a “short drive” from three towns is the opposite of a sustainable location; it confirms car dependence.

The only “sustainable travel” measures offered are “hotel bicycles” and “PRoW maps”, which are token measures. There is no genuine choice of mode: the location forecloses walking, cycling and public transport for almost all trips.⁷⁷

Wiltshire has refused countryside tourism and leisure schemes on this precise point: “the main form of access would be via private motor vehicle due to the site’s unsustainable location” (Euridge Manor; Headlands Farm lodges).⁷⁸

NPPF 2026 (public rights of way) and Wiltshire Core Strategy Core Policy 57

Summary: A public footpath runs across the site - and the Welcome Building and car park are drawn on top of it. The application form says no rights of way need moving; the Council’s access officer says the footpath must be diverted.

What the policies require: The NPPF requires decisions to protect and enhance public rights of way; safe and suitable access must be provided.

⁷⁶ Transport Statement §2.4

⁷⁷ Transport Statement §4.16 and §5

⁷⁸ Euridge Manor, Colerne (PL/2021/07966); Headlands Farm, Cricklade (PL/2023/02992)

How this scheme breaches them: The Council's Countryside Access Development Officer points out that the layout physically blocks a public footpath and loads traffic onto a bridleway:

*"The restaurant part of the welcome building and the car park will obstruct the route of Public Footpath BROM2. The Public Footpath will need to be diverted for the applicant to be able to achieve the development shown on the proposed site layout [...] [For Denbanks] The addition of a new dwelling accessed via Public Bridleway BROM1A will lead to increased vehicle usage of this bridleway [...]"*⁷⁹

This directly contradicts the application form, which answers "No" to whether the proposals require any diversion of rights of way, and the Design and Access Statement's claim that the route "*will be retained and protected*".⁸⁰

The conflict must be resolved by a revised layout or a formal diversion order applied for in parallel before determination.

Similar cases

Wyatts Lake Farm, Westbrook Road, Bromham (19/03162/FUL)

Change of use to holiday/worker accommodation, shop and tea room, with new access and **acoustic bunds**, on the A3102 a short distance from Nonsuch. Refused. It is the single most relevant comparator because it shares almost every feature of this case:

- **Acoustic bunds with no assessment.** The officer noted: "No acoustic assessment has been provided in respect of existing noise levels and benefit from construction of the bunds, which are perhaps being constructed as much as to 'lose' waste... as to reduce noise levels." Exactly the Nonsuch position - a bund drawn, but never tested.
- **Obstructed public footpath**, unsustainable car-dependent location, and harm to landscape character and the setting of the North Wessex Downs National Landscape (CP1, CP2, CP12, CP51, CP61).

Enabling development and heritage - "use the existing buildings first, and prove the smaller scheme won't work"

- **Berrybrook Farm, Sedgemoor (PL/2023/07933).** A new estate building at a listed estate, refused. Conservation officer: "existing building stock should be fully utilised before any new buildings are erected"; the harm was "less than substantial, but there are no public benefits on offer to outweigh the harm." *Reinforces the keystone point: new buildings must be justified against re-using what already exists.*

⁷⁹ Wiltshire Council Countryside Access Development Officer consultation response (Paul Millard).

⁸⁰ Application Form (rights-of-way diversions required = No); Design and Access Statement §5.5, p. 21.

- **Pool Farm, Biddestone (PL/2021/08215).** Barn to holiday let with extensions, refused. “The same public benefit could very easily be secured through a more sensitive scheme. There is nothing to suggest that such a scheme would be unviable.” *This is similar to the Nonsuch viability gap - if a lower-harm scheme could deliver the same benefit and hasn’t been shown to be unviable, the extra harm isn’t justified.*
- **Harrow Farm, Froxfield (PL/2021/05887).** Listed farm buildings to business use, refused for heritage, landscape, unsustainable location and insufficient information. The officer noted “no evidence has been provided to demonstrate that it would not be viable to convert only the historic farm building.” *Reinforces: the burden is on the applicant to prove the modest option fails.*

Noise, events and residential amenity

- **Euridge Manor, Colerne (PL/2021/07966).** Events use with pods, refused. The Public Protection team calculated that noise “from 150 guests attending outdoor events would be significantly above the background noise level”; a noise management plan was demanded; and in an open valley “acoustic barriers to attenuate outdoor entertainment are unlikely to be an option.” The bowl-shaped topography “accentuates both the volume and distance sound from the site travels.” *The closest analogue to the Nonsuch events/noise problem - and the topography point mirrors the slope down to Clacker’s Brook and up to residential areas of Bromham.*
- **Broad Town micro-brewery (PL/2021/08484).** Refused. The Public Protection Officer judged patron noise a “Significant Observed Adverse Effect Level (SOAEL)” and applied the BS4142:2019 test of 5 dB above background; conditions could not make it acceptable. *Reinforces: in a quiet rural setting a proper BS4142 background survey is required, and straight-line map distance is no substitute.*
- **Bromham Community Hub (PL/2025/08017).** An application to remove a plant-noise condition was resisted. Public Protection confirmed the standard is a rating level “5 dB below the typical background”, and the survey found a **night-time background of just 27 dB - “very low”**. *This is Bromham’s own baseline: the village is quiet, so new noise is intrusive. Residential areas on the edge of the village are likely to be quieter still.*

Unsustainable, car-dependent location

- **Headlands Farm holiday lodges, Cricklade (PL/2023/02992).** 14 lodges refused (October 2025): “not well served by public transport [...] vehicle movements [...] via private modes [...] contrary to Core Policies 60 and 61 [...] and paragraph 110”, plus landscape “alien to the rural landscape” with “an urbanising effect.”
- **Lea (PL/2025/07909).** Refused: occupiers “would be reliant on private vehicles for most, if not all, daily transport needs [...] contrary to paragraph 110”, and the heritage harm “far outweighs the public benefits” so the tilted balance was not engaged.

- **Clarendon Park (PL/2023/10771).** Estate-worker flat refused, in part for its unsustainable location (CP57, CP60, CP61). *Reinforces: a remote estate reliant on the private car fails the sustainability test.*

Ecology - out-of-date or incomplete surveys

- **Ashton Keynes anaerobic digester (PL/2023/03359).** The ecological submission was “both outdated and incomplete”, failing to identify great crested newt breeding within 500 m and the importance of hedgerows for red-listed birds. *Pparallels the Ecology Officer’s objection here that the PEA is out of date and the survey suite incomplete.*
- **McDonald’s, Hilperton (PL/2023/05469).** Refused for “insufficient information including the absence of full and detailed bat survey information [...] and lack of a Biodiversity Net Gain Assessment.” *Reinforces: incomplete bat survey work and an unreliable BNG are a reason to withhold permission.*

Rural housing and replacement dwellings (relevant to Denbanks)

- **Braydon Pond Lodge, Charlton (PL/2022/02697).** A replacement dwelling refused. Under saved Policy H4 a replacement must be of “similar size and scale”; the proposal was “significantly different in terms of scale and design” and moved outside the residential curtilage, so it read as a new dwelling in open countryside (CP1, CP2, CP48). *Similar to Denbanks - replacing one dwelling with two, differently sited, fails the replacement test.*
- **Hampton Farm, Bishops Cannings (PL/2025/08401).** An agricultural worker’s dwelling refused for want of “functional and financial evidence”; “security alone does not equate to an essential need”, and the dwelling was far larger than the ~150 sqm norm. *Reinforces: a rural-worker justification needs proper functional and financial evidence.*